Notification Waiver Determination

INPEX – further interest in the Ichthys LNG Project

Acquisition	INPEX Corporation proposes to acquire a further interest in the Ichthys LNG Project, as described in the transaction documents provided as part of the application (the **Acquisition**). In particular: • INPEX Ichthys Pty Ltd (**INPEX Ichthys**) will acquire JERA Ichthys Pty Ltd's (**JERA**) 0.735% interest in the unincorporated Ichthys joint venture; and • INPEX Holdings Australia Pty Ltd (**INPEX Holdings**) will acquire JERA's 0.735% interest in Ichthys LNG Pty Ltd. INPEX Ichthys and INPEX Holdings applied for a notification waiver in respect of the Acquisition.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition is not required to be notified.
Date of determination	21 October 2026

Parties to the Acquisition	The acquirers, INPEX Ichthys and INPEX Holdings, are wholly owned subsidiaries of INPEX Corporation (**INPEX**). INPEX is an oil and gas exploration and production company headquartered in Tokyo, Japan. Its main business includes research, exploration, development, production and sales of oil, natural gas and other mineral resources. In Australia, INPEX: • owns a majority stake and operates the Ichthys LNG project in offshore Western Australia • has a minority participating interest in Prelude FLNG Project in offshore Western Australia • has a minority participating interest in Darwin LNG Project in the Northern Territory • has a minority participating interest in the Ravensworth Oil Field in offshore Western Australia • has a 50% interest in Potentia Energy, a renewable energy developer in Australia • has a minority participating interests in Beetaloo Central Development project, First Strategic Development Area South project, and FSDA North project, located in the Northern Territory, through its strategic partnership with Daly Waters Energy.

	Furthermore, INPEX is engaged in oil and gas exploration through interests in leases in and around Western Australia and the Northern Territory, principally in the area surrounding the Ichthys LNG Project. INPEX also supplies LNG in the global seaborn LNG industry and natural gas in the Northern Territory. The Ichthys LNG Project is located about 220 kilometres offshore from Western Australia and 820 kilometres southwest of Darwin, with the Ichthys Field covering an area of around 800 square kilometres in water averaging depths of around 250 metres. The Ichthys LNG Project produces up to 9.3 million tonnes of LNG per annum at peak, as well as Liquified Petroleum Gas (**LPG**) and condensate as by-products. The Ichthys LNG Project operates across the chain of development and production of LNG, including subsea, offshore, pipeline and onshore LNG. Gas and condensate from the Ichthys gas field is exported to onshore facilities for processing near Darwin via an 890-kilometre pipeline. Almost all gas and condensate produced is exported overseas. The target assets under the Acquisition principally comprise of: • JERA's 0.735% interest in the unincorporated Ichthys joint venture, which owns certain Commonwealth petroleum retention leases and titles, upstream infrastructure such as the floating production, storage and offloading facility and the central processing facility plus the rights, title and interests in certain asset documents regarding the Ichthys LNG Project; and • JERA's 0.735% interest in Ichthys LNG Pty Ltd, the downstream entity that owns the gas export pipeline, onshore LNG plant and storage and offloading facilities for the Ichthys LNG Project. INPEX currently holds a 67.82% interest in the Ichthys LNG Project (before the Acquisition).
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the **ACCC**) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: a. INPEX (through its wholly owned INPEX subsidiaries) already owns a majority interest in the Ichthys LNG Project b. the Acquisition would lead to a very small increase in INPEX's share of the production and supply of natural gas, the wholesale supply of LNG, and the production and supply of LPG and condensate in Australia and globally (to the extent it is already produced from the Ichthys LNG Project) c. there are alternative producers and suppliers in the exploration of crude oil and natural gas, the production and supply of natural gas, the wholesale supply of LNG, and the production and supply of LPG and condensate in Australia and globally. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met.

	Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act